

SUBCONTRACTOR AGREEMENT

PROJECT INFORMATION

Project Address: _____

Legal Description: _____

Owner/General Contractor Information:

Name: _____

Address: _____

City/State/ZIP: _____

Phone: _____ Email: _____

Subcontractor Information:

Company Name: _____

License #: _____ State: _____

Contact Person: _____

Address: _____

City/State/ZIP: _____

Phone: _____ Email: _____

Project Description: _____

Agreement Date: _____

Work Start Date: _____

Substantial Completion Date: _____

Final Completion Date: _____

SCOPE OF WORK

Detailed Description of Work to be Performed:

[illegible]

Specifications and Standards:

- Work shall comply with all applicable building codes and regulations
- Work shall comply with approved plans dated:

- Work shall meet industry standards for:

- Other specifications: _____

Materials:

Materials to be provided by Subcontractor:

Materials to be provided by Owner:

Exclusions (Work NOT included in this agreement):

PAYMENT TERMS**Total Contract Amount:** \$ _____**Payment Schedule:**

Draw #	Milestone/Completion Point	Amount
1	_____	\$ _____
2	_____	\$ _____
3	_____	\$ _____
4	_____	\$ _____
5	_____	\$ _____

Retention: _____ % to be held until final completion and inspection**Retention Amount:** \$ _____**Payment Terms:** Payment due within _____ days of invoice submission**Final Payment Conditions:**

Final payment shall be made upon:

- Completion of all work per specifications
- Passing final inspection
- Receipt of unconditional lien waiver from Subcontractor
- Receipt of lien waivers from all material suppliers
- Submission of warranties and operating manuals (if applicable)
- Correction of any punch list items

Change Orders:

All changes to the scope of work must be approved in writing via Change Order Form before work begins. No additional payment will be made for work performed without a signed change order.

Change orders must include:

- Detailed description of change
- Cost impact (materials and labor)
- Schedule impact
- Signatures of both parties

LEGAL REQUIREMENTS AND RESPONSIBILITIES

Insurance Requirements:

Subcontractor shall maintain the following insurance coverage throughout the duration of this agreement:

■ General Liability Insurance: Minimum \$ _____ per occurrence

■ Workers' Compensation Insurance (if required by state law)

■ Vehicle Insurance: Minimum \$ _____ per occurrence

Subcontractor shall provide Certificate of Insurance to Owner before work begins.

License Verification:

■ Subcontractor license verified with state licensing board

■ License in good standing as of: _____

Lien Waivers:

Subcontractor agrees to provide:

- Conditional lien waiver with each progress payment request
- Unconditional lien waiver upon receipt of each progress payment
- Final unconditional lien waiver upon receipt of final payment
- Lien waivers from all material suppliers and sub-subcontractors

Warranty:

Subcontractor warrants that all work shall be:

- Performed in a workmanlike manner
- Free from defects in materials and workmanship
- In compliance with all applicable codes and regulations
- Performed by qualified personnel

Warranty Period: _____ from date of substantial completion

Subcontractor shall promptly correct any defects in materials or workmanship that appear during the warranty period at no additional cost to Owner.

Permits and Inspections:

■ Owner responsible for obtaining permits

■ Subcontractor responsible for obtaining permits

Subcontractor shall notify Owner at least 48 hours before inspections are required and shall coordinate with inspector to schedule inspections.

Subcontractor shall correct any work that fails inspection at no additional cost to Owner.

DISPUTE RESOLUTION

Any disputes arising under this agreement shall be resolved as follows:

- 1. Direct Communication:** Parties shall first attempt to resolve disputes through direct communication within 7 days of dispute arising.
- 2. Written Notice:** If dispute is not resolved, the aggrieved party shall provide written notice detailing the dispute within 14 days.
- 3. Meeting:** Parties shall meet in person within 14 days of written notice to attempt resolution.
- 4. Mediation:** If meeting does not resolve dispute, parties agree to participate in mediation with a mutually agreed upon mediator. Cost of mediation shall be split equally.
- 5. Arbitration/Litigation:** If mediation fails, parties may pursue:

■ Binding arbitration (check if selected)

■ Litigation in courts of _____ County,
_____ (State)

Termination:

By Owner: Owner may terminate this agreement for cause (failure to perform, safety violations, code violations) with 7 days written notice. Owner may terminate without cause with 14 days written notice.

By Subcontractor: Subcontractor may terminate for non-payment after providing 14 days written notice and opportunity to cure.

Upon termination, Subcontractor shall be paid for all work completed to date, less any costs incurred by Owner to correct deficiencies.

Indemnification:

Subcontractor agrees to indemnify and hold harmless Owner from any claims, damages, losses, or expenses (including attorney fees) arising from:

- Subcontractor's negligent acts or omissions
- Injury to persons or property caused by Subcontractor or its employees
- Failure to comply with applicable laws and regulations
- Claims by Subcontractor's employees, suppliers, or sub-subcontractors

ADDITIONAL TERMS AND CONDITIONS

Site Access and Scheduling:

Subcontractor shall coordinate work schedule with Owner and other trades. Site access hours: _____

Cleanup:

Subcontractor shall maintain a clean and safe work area and remove all debris and materials at the end of each workday. Final cleanup shall include removal of all tools, equipment, and materials.

Safety:

Subcontractor shall comply with all OSHA regulations and maintain a safe work environment. Subcontractor is responsible for safety of its employees and shall provide all required personal protective equipment.

Damage to Property:

Subcontractor shall be responsible for any damage to existing structures, fixtures, or property caused by Subcontractor or its employees.

Assignment:

This agreement may not be assigned without written consent of both parties.

Entire Agreement:

This agreement constitutes the entire agreement between parties and supersedes all prior negotiations, representations, or agreements. This agreement may only be modified by written amendment signed by both parties.

Governing Law:

This agreement shall be governed by the laws of the State of _____.

SIGNATURES

By signing below, parties acknowledge they have read, understood, and agree to all terms and conditions of this agreement.

OWNER/GENERAL CONTRACTOR:

Signature: _____ Date: _____

Print Name: _____

SUBCONTRACTOR:

Signature: _____ Date: _____

Print Name: _____

Title: _____

WITNESS (Optional):

Signature: _____ Date: _____

Print Name: _____